

In the Supreme Court of Bangladesh
High Court Division
(Special original Jurisdiction)

Present:

Mr. Justice Md. Bazlur Rahman

And

**Mr. Justice Syed Mohammed Tazrul
Hossain**

Writ Petition No. 13593 of 2023

Md. Iftekher Alam @ Md. Iftekhear
Alam (Mintu) Talukder

Versus

Government of the People's Republic
of Bangladesh and others

Mr. Mohammad Jahirul Islam

..... For the petitioner

Mr. Ruhul Ameen, Advocate

...for the respondent No. 3

Mr. Md. Mohaddesh-Ul-Islam (Tutul),
D.A.G with

Mr. Ashique Rubaiat, A.A.G with

Mr. Monjur Elahi (Porag), A.A.G.
with

Mr. Md. Abdul Kaiyum Bhuiyan, A.A.G
and

Mr. Mohammad Mozammel Hossain,
A.A.G.

....For the State

Heard and Judgment On: 28.10.2024

Syed Momammed Tazrul Hossain,J:

At the instance of the petitioner Md. Iftekher Alam @ Md. Iftekhear Alam (Mintu) Talukder this Court issued a Rule Nisi in the following terms:

"Let a Rule Nisi be issued calling upon the respondents to show cause as to why the impugned order dated 07.05.2023 passed by the learned Judge of Artha Rin Adalat No. 2, Dhaka in Artha Rin Suit No. 1160 of 2019 rejecting the application filed by defendant-petitioner now pending in the Court of learned Artha Rin Adalat No. 2, Dhaka should not be declared to be without lawful authority and is of no legal effect and/or such other or further order or orders passed as to this court may seem fit and proper."

The background leading to the Rule in short is that respondent No. 3, Industrial and Infrastructure Development Finance Company Limited (IIDFC Limited), Chamber building, (6th and 7th Floor, 122-124, Motijheel Commercial Area, Dhaka as the plaintiff filed Artha Rin

Suit No. 1160 of 2019 before the Artha Rin Adalat, Court No. 2, Dhaka for recovery of Tk.1,39,73,877.00 (one crore thirty nine lacs seventy three thousand eight hundred and seventy seven) stating inter alia that the defendant No. 1 was a proprietorship firm owned by the defendant No. 2. Upon an application of the defendant No. 2 (IIDFC Ltd.) granted a term loan of Tk. 50,00,000.00 (fifty lac) vide sanction letter dated 20.06.2010 and the defendant No. 2 accepted the loan and executed all the charge documents and furnished security by mortgaging two schedule properties owned by him and executing an irrevocable power of attorney in favour of (IIDFC Ltd.). Defendant No. 3 was a personal guarantor. Said loan was later rescheduled on 28.01.2023 for an amount of Tk. 44,18,308/- but due to non payment of regular installments loan account of the defendants became classified. IIDFC Ltd. then through their appointed advocate served a legal notice dated 21.08.2019 requesting the

defendants to clear their outstanding dues and in failure legal recourse under the Artha Rin Adalat Ain, 2003 (Ain 2003) will be taken. As defendants failed to meet the said demands, auction notice dated 05.11.2019 was published under section 12(3) of the Ain 2003. As there was no response in the auction, plaintiff filed the Artha Rin Suit for recovery of Tk. 1,39,73,877/- as of 12.11.2019 (Annexure-A). The petitioner appeared in that suit by submitting vokalatnama and filed written statements. Prosecution adduced one witness and after few months date was still fixed for cross examination of the prosecution witness but on that date defendants filed an application for supplying some documents by the plaintiff as listed in the said application and also prayed for time to submit additional written statements (Annexure-C).

Mr. Mohammad Jahirul Islam, learned Advocate for the petitioner placed the rule issuing order, the writ petition and the

supplementary affidavit filed by him. He submits that during cross examination of the P.W.1 petitioner found that there were discrepancies in the loan account regarding withdrawal and repayments made by him. Mr. Islam argued that even though the lender claimed that the loan was once rescheduled, but he categorically denies that neither he applied for any reschedulement nor he accepted any such sanction letter. He tried to impress upon the court that the defendant financial institution has been involved with some sort of illegal actions against the petitioner, hence he should be supplied with the documents listed in his application so that such alledged illegality could be pointed out.

Learned advocate for the petitioner argued that under the provision of Section 57 of the Artha Rin Adalat Ain 2003 learned Court could permit the petitioner to submit further written statements. He further argued that by rejecting the petitioner's application his right to be

heard under the principle of natural justice has been violated and as such instant Rule should be made absolute.

Mr. Ruhul Ameen, Learned Advocate for the respondent No. 3 opposed the rule and filed an affidavit-in-opposition. He placed the affidavit in opposition and submits that under the provisions of Artha Rin Adalat Ain 2003 petitioner does not have any scope to submit an additional or further written statements and the learned Court below rightly has rejected the application of the petitioner. He submits that the petitioner appeared in the instant Artha Rin Suit and filed written statements on 11.02.2021 and after a long period of more than two years he filed the instant application on 07.05.2023 without mentioning any legal provision under which such an application may be granted.

Learned Advocate submits that the respondent No. 3, plaintiff bank has long ago supplied the loan account statement to the

petitioner and the prosecution witness No. 1 has exhibited the other documents which the petitioner applied to be supplied with.

He further submits that admittedly the petitioner earlier had filed another writ petition on the self same matter which was rejected as being not pressed. He finally submits that the petitioner has filed the instant writ petition just as a dilatory tactic and considering all the circumstances he prays for discharging the Rule.

In support of his arguments learned advocate for the respondent No. 3 refers to a decision of our Apex Court reported in 6 ADC Page-142.

We have meticulously perused the writ petition, supplementary affidavit, affidavit in opposition and all the documents annexed thereto to the writ petition and also consulted the relevant provisions of the Ain, 2003 and the relevant precedents submitted by the parties.

To appreciate the submissions of the learned advocate for the respondent No. 3. Section 10 of the Artha Rin Adalat Ain 2003 may be quoted which reads as follows:

১০ (১) উপ-ধারা (২) এর বিধান সাপেক্ষে, অর্থ ঋণ আদালত, বিবাদী উপস্থিত হওয়ার ৪০ (চল্লিশ) দিবসের পরবর্তীতে বিবাদী কর্তৃক দাখিলকৃত কোন লিখিত জবাব গ্রহণ করিবে না, এবং এইরূপ ক্ষেত্রে আদালত অবিলম্বে একতরফা সূত্রে মামলা নিষ্পত্তি করিবে।

(২) উপ-ধারা (১) এর বিধান সত্ত্বেও, অনূন ২০০০ (দুই হাজার) এবং অনূর্ধ্ব ৫০০০ (পাঁচ হাজার) টাকা পর্যন্ত খরচ প্রদানের পূর্বশর্ত সাপেক্ষে আদালত উপরি-উক্ত সময়সীমা অনূর্ধ্ব আরো ২০ (বিশ) দিবস পর্যন্ত বর্ধিত করিতে পারিবে।

(৩) এই ধারার অধীন প্রদেয় খরচ সরকারি রাজস্ব হিসাবে নির্ধারিত খাতে জমা করিয়া উহার চালান প্রমাণস্বরূপ আদালতে দাখিল করিতে হইবে।

From the plain reading of the above quoted section of law it is clear that the defendant shall get 40 days time to submit his written statements from the date of his appearance in the suit. This time may however be extended for a further period of 20 days subject to cost as may be fixed by the Court.

Apart from the written statements as provided under the provision of section 10 of the Ain, the defendant may produce any documents in support of his written statements;

in this regard relevant provision of section 9 of the Ain, 2003 may profitably be quoted:

“৯। (১) আদালত কর্তৃক জারীকৃত সমনে নির্ধারিত তারিখে বিবাদী আদালতে হাজির হইবেন এবং লিখিত জবাব দাখিল করিয়া বাদীর দাবী সম্পর্কে জবাব থাকিলে উহা উপস্থাপন করিবেন।

(২) বিবাদী তাঁহার বক্তব্যের সমর্থনে কোন দলিলের উপর নির্ভর করিলে এবং ঐ দলিল তাঁহার দখলে থাকিলে, উক্ত দলিল বা উহার সত্যায়িত ফটোকপি একটি তালিকায় অন্তর্ভুক্ত করিয়া লিখিত জবাবের সহিত ফিরিস্তি সহকারে দাখিল করিবেন।

(৩) বিবাদী তাঁহার জবাবের সমর্থনে সাক্ষ্য হিসাবে তাঁহার দখল বা নিয়ন্ত্রণে নাই এমন কোন দলিলের উপর নির্ভর করিলে, উক্ত দলিল বা দলিলসমূহের একটি তালিকা, ঐগুলি কাহার দখলে আছে, নাম-ঠিকানা উল্লেখপূর্বক, লিখিত জবাবের সহিত দাখিল করিবেন।

(৪) উপ-ধারা (২) ও (৩) এর বিধানের ব্যত্যয়ে, পরবর্তীতে কোন দলিল বিবাদী দাখিল করিলে, আদালত, সংগত কারণ ও খরচ প্রদান ব্যতিরেকে উহা গ্রহণ করিবে না; এবং প্রদেয় খরচ সরকারি রাজস্ব হিসাবে নির্ধারিত খাতে জমা হইবে।.....”

Under the provision of Section 9(2) of the Ain, 2003 if the defendant in support of his written statements relies on any document, he shall submit the said document or an attested copy thereof in a firisti together with the written statements. If the defendant relies on some documents of which he does not have possession, under the provision of Section 9(3) of the Ain, 2003 he shall submit a list of such documents by mentioning the name and address of the person in whose position they are in a firisty together in the written statements.

Subsequent to submission of the written statements if the defendant wants to submit any further documents in support of his case under section 9(4) of the Ain 2003 court may subject to justification and cost, allow the defendant to submit such documents.

Following filling of the written statements by the defendant if the plaintiff institution want to furnish any reply or clarification in addition to its plaint, under the provision of Section 11 of the Ain 2003 and subject to leave of the court it may do so within 15 days of submission of the written statements by the defendants.

The Artha Rin Adalat Ain 2003 is a special law and provisions of the said Ain is required to be followed and enforced strictly.

From the discussions made in the proceeding paragraphs it is seen that under the provisions of the Artha Rin Adalat Ain 2003 there is some flexibility in the time frame for submission of the written statements by the defendant. But,

once the defendant submits written statements even though she/he can adduce additional documents but the Ain does not conceive of any scope for the defendant to submit a further or additional written statements.

We find support of this view in the decision of our apex court expressed in **Md. Nurul Haque Sarker Vs Janata Bank, Tan Bazar Branch, Narayanganj and another** reported in **6 ADC 142.**

It is found that the petitioner submitted his application dated 07.05.2023 with two prayers; one for a direction upon the plaintiff to supply some documents listed in the said application and the other was for allowing him time to submit additional written statements after receipt of the listed documents.

Even though the Ain, 2003 does not provide for submission of any additional written statements but the learned Artha Rin Adalat is sufficiently empowered to allow the defendant, if sought by him, to produce any document even

after submission of the written statements which will support the case of the defendants. It may be noted that even though a defendant is not entitled to submit any additional written statements but by adducing additional documents he can further his efforts to establish his case by taking advantage of such documents.

From the impugned order it is apparent that the court below though rightly rejected the petitioner's prayer for time to submit additional written statements but it did not pass any order regarding the supply of the documents as listed in the application. Considering the legal provisions as discussed above it is our considered view that ends of justice will be met if the petitioner is allowed to be supplied of the listed documents which are in possession of the respondent No. 3 and had not already been supplied to the petitioner nor exhibited by the P.W.1 and thereafter learned Court may proceed with the trial of the instant Artha Rin Suit as per law.

In view of the decision quoted and observations made above rule in the instant matter is disposed of.

The order of stay granted earlier in the instant matter is hereby recalled and vacated. Artha Rin Suit No. 1160 of 2019 may be withdrawn from ex parte hearing and learned Artha Rin Adalat, Court No. 2, Dhaka is directed to conclude the trial of the suit within a period of 90(ninety) days from date without fail upon complying the relevant provisions of the Artha Rin Adalat Ain, 2003.

Communicate the judgment to the concern court at once.

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Syed Mohammed Tazrul Hossain,J)

I agree

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(Md. Bazlur Rahman,J)